

		The Court's April 29, 2026, Minute Order provides as follows: [t]he parties stipulate, and the Court orders, that the LASC Model Protective Order will be modified to include an elevated AEO designation governing the treatment of confidential information produced in this action, including by third parties; (2) Motions to Quash will be GRANTED and DENIED IN PART. The Court orders the subpoenas to be limited to a ten year temporal scope, inclusive of January 1, 2016, to present. Moreover, the Court orders no "first look" opportunity given to plaintiff. All records to be produced to all parties with appropriate confidentiality designations contemporaneously. ROA 101. The Court finds that the Order accurately reflects the Court's intended ruling. There is no clerical error, omission, or ambiguity warranting clarification or modification under Code of Civil Procedure Sections 128(a)(3) or 473(d). Accordingly, Plaintiff's Motion to Modify or Clarify is DENIED.
4.	<u>30-2022-01262979-CU-OE-CJC</u> Patel vs. Amanda Rafi, DMD, A Professional Dental Corporation	Before the Court are the following four (4) motions brought by Plaintiff Paris Patel ("Plaintiff") against Defendant Amanda Rafi ("Defendant"): a Motion to Compel Further Responses to Form Interrogatories ("MF-FROG"), Set Three, and Sanctions (ROA 421); a Motion to Compel Further Responses to Special Interrogatories ("MF-SROG"), Set Four, and Sanctions (ROA 423); a Motion to Compel Further Responses to Requests for Admission ("MF-RFA"), Set Three, and Sanctions (ROA 425); and a Motion to Compel Further Responses to Requests for Production ("MF-RFP"), Set Five, and Sanctions (ROA 426). The underlying controversy involves claims of breach of contract, breach of good faith, labor code violations, retaliation, unfair business practices, and cross-complaints of misappropriation of trade secrets, intentional interference with contractual relations, negligent interference with prospective economic relations, and breach of oral contract. ROAs 2, 290. Plaintiff was employed

	by Defendant from July 2020 through December 2021. ROA 421, Decl. of Judith Camilleri (“Camilleri”), ¶ 2. The controversy arises from Defendant’s alleged failure to pay commissions and wages to Plaintiff. <i>Id.</i> at ¶ 3. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Section 2030.300, compelling Defendant to provide further, verified, code compliant responses to Plaintiff’s Form Interrogatories (“FROG”), Set Three, Nos. 17.1(b) re: Requests for Admission (“RFA”), Set Three, Nos. 26, 29, 30, 31, and 45, and imposing sanctions upon Defendant and Defendant’s counsel of record, Mirhosseini Law Group, jointly and severally, in the amount of \$3,120.00, for the costs incurred by Plaintiff in bringing her MF-FROG, Set Three. ROA 421, pp. 2-3. Plaintiff also seeks an order, pursuant to California Code of Civil Procedure Section 2031.300, compelling Defendant to provide further, verified, code compliant responses to Plaintiff’s Special Interrogatories (“SROG”), Set Four, Nos. 25, 33, 46, 53, 56, 59, 62, 87, and 94, and imposing sanctions upon Defendant and Defendant’s counsel of record, Mirhosseini Law Group, jointly and severally, in the amount of \$5,520.00, for the costs incurred by Plaintiff in bringing her MF-SROG, Set Four. ROA 423, p.11. Additionally, Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2023.010 and 2033.290, imposing sanctions upon Defendant and Defendant’s counsel of record, Mirhosseini Law Group, jointly and severally, in the amount of \$3,420.00, for the costs incurred by Plaintiff in bringing her MF-RFA, Set Three. ROA 425, pp. 2-3. Lastly, Plaintiff seeks an order, pursuant to California Code of Civil Procedure Section 2031.310, compelling Defendant to provide further, verified, code compliant responses to Plaintiff’s Requests for Production (“RFP”), Set Five, Nos. 41, 62, 63, 64, and 79, and imposing sanctions upon Defendant and Defendant’s counsel of record, Mirhosseini Law Group, jointly and severally, in the amount of \$4,320.00 for the costs incurred by Plaintiff in bringing her
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		MF-RFP, Set Five. ROA 423, p.11. In total, Plaintiff seeks \$16,380.00 in monetary discovery sanctions. Defendant requests that the Court deny Plaintiff's motions and requests for sanctions. ROA 429, p.8; ROA 439, p.8; ROA 445, pp. 10-11. I. Meet and Confer Requirements re: Motions to Compel Further Responses to Discovery Requests The meet and confer requirement is intended to promote the public policy of judicial economy and to encourage the informal resolution of discovery disputes. <i>Townsend v. Super. Ct.</i>, 61 Cal. App. 4th 1431, 1434-35 (1998) (<i>citing DeBlase v. Super. Ct.</i>, 41 Cal. App. 4th 1279, 1284 (1996)); <i>see</i> Cal. Civ. Proc. Code 2023.010(i) (failing to meet and confer, or failing to make an attempt to meet and confer, either in person, by phone, or by videoconference, is subject to sanctions when a meet and confer declaration is required by statute). Parties' obligation to meet and confer under the California Code of Civil Procedure arises only after responses are contested or upon a motion for a protective order. Cal. Civ. Proc. Code §§ 2025.420(b), 2025.450(b)(2), 2030.090(a), 2030.300(b)(1), 2031.060(a), 2031.310(b)(2), 2033.080(a), 2033.290(b)(1). Both statute and case law demand a reasonable, good faith effort by the moving party to meet and confer before submitting a motion to compel further responses. Cal. Civ. Proc. Code §§ 2016.040 ("[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt . . . to informally resolve each issue presented by the motion."), 2030.300(b), 2031.310(b)(2), 2033.290(b)(1); <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1298-99 (2024) ("in order to bring a motion to compel discovery, the propounding party must first engage in reasonable and good faith attempts at informal resolution . . .").
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	Effective January 1, 2026, a meet and confer declaration “shall state facts showing a reasonable and good faith attempt” on the part of the moving party to meet and confer either in person, telephonically, or by videoconference; e-mail alone will not suffice. Cal. Civ. Proc. Code § 2016.040(a). Additionally, the moving party’s declaration “shall include whether [they have] met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion.” Cal. Civ. Proc. Code § 2016.040(b). Here, Plaintiff propounded FROG, Set Three; RFA, Set Three; SROG, Set Four; and RFP, Set Five; upon Defendant on November 12, 2025, by e-service. ROA 421, p.27; ROA 423, p.32; ROA 425, Decl. of Camilleri, ¶ 3; ROA 426, p.28. On December 9, 2025, Plaintiff granted Defendant’s request for an extension to provide initial responses by January 7, 2026. ROA 421, Decl. of Camilleri, ¶ 5. On January 7, 2026, Defendant served initial responses to Plaintiff’s herein discovery demands. ROA 421, p.37. That same day, Plaintiff sent Defendant an email offering to meet and confer regarding Defendant’s responses. ROA 421, p.40. On January 12, 2026, Plaintiff sent Defendant a letter detailing why Defendant’s responses were insufficient and requesting supplemental responses by January 22, 2026. ROA 421, Decl. of Camilleri, ¶ 8. From January 20, 2026, to February 3, 2026, Plaintiff agreed <i>three (3) times</i> to extend the January 22, 2026, deadline to provide supplemental responses, ultimately agreeing to a deadline of February 6, 2026. ROA 421, Decl. of Camilleri, ¶ 9. In return, Defendant agreed to a reciprocal extension of Plaintiff’s deadline to file motions to compel further responses to March 20, 2026. ROA 421, p.50; ROA 423, p.74. On February 6, 2026, Defendant served supplemental responses to Plaintiff’s herein discovery demands. ROA 421, Decl. of Camilleri, ¶ 10.
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	On February 11, 2026, Plaintiff sent another detailed letter addressing Defendant's supplemental responses and requesting code compliant responses no later than February 23, 2026. ROA 421, p.69; ROA 423, p.124. On February 17, 2026, Plaintiff granted Defendant an extension until March 2, 2026, to serve further supplemental responses. ROA 421, Decl. of Camilleri, ¶ 12. On March 2, 2026, Defendant confirmed that she would not provide further supplemental responses to RFA, Set Three; and SROG, Set Four, but agreed to provide a further supplemental response to Plaintiff's FROG, Set Three, re: RFA, Set Three, No. 22. ROA 421, Exh. J. Additionally, Defendant served limited supplemental responses to Plaintiff's RFP, Set Five. ROA 426, Decl. of Camilleri, ¶ 13. Plaintiff served her MF-RFP, Set Five, that same day. ROA 348, p.130. On March 6, 2026, Plaintiff served her MF-FROG, Set Three, and MF-RFA, Set Three, by e-service. ROA 352, p.74; ROA 359, p.98 On March 9, 2026, Plaintiff served her MF-SROG, Set Four, upon Defendant, by e-service. ROA 366, p.129. Pursuant to the foregoing, the Court finds that Plaintiff's motions are substantially justified. The record presents compelling evidence that Defendant engaged in improper gamesmanship and provides ample grounds to grant the requested relief. Nevertheless, Plaintiff's motions suffer from a fatal procedural defect. Accordingly, despite the merits of Plaintiff's position, the Court is reluctantly compelled to deny the motions on procedural grounds. While the Court finds that Plaintiff's declarations in support of her motions satisfy the requirement to attempt to meet and confer in person, by phone, or over video, they do not state facts that satisfy the statutory requirement that the moving party attempt to meet and confer regarding the retention of a certified shorthand reporter. ROA 421, Decl. of Camilleri; ROA 423, Decl. of Camilleri; ROA 425, Decl. of
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		Camilleri. Consequently, because Plaintiff has not satisfied the statutory requirements of California Code of Civil Procedure Section 2016.040(b), Plaintiff's motions are denied on procedural grounds. Sanctions re: Motions to Compel Further Responses to Discovery Requests The Civil Discovery Act provides that courts <i>shall</i> impose a monetary sanction . . . against any party . . . who unsuccessfully makes or opposes a motion to compel further response[s] . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Cal. Civ. Proc. Code §§ 2030.300(d), 2031.310(d), 2033.290(d). "“Whenever one party's improper actions—even if not “willful”—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party.” <i>Ellis v. Toshiba Am. Info. Sys. Inc.</i>, 218 Cal. App. 4th 853, 878 (2013) (quoting <i>Clement v. Alegre</i>, 177 Cal. App. 4th 1277, 1286-1287 (2009)). The term “substantial justification” means a justification that “is clearly reasonable because it is well grounded in both law and fact.” <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011). Here, the Court finds no substantial justification for Plaintiff's failure to satisfy the provisions of California Code of Civil Procedure Section 2016.040(b). However, under the Court's reading of Chapter Seven of the Civil Discovery Act, failing to confer regarding the retention of a certified shorthand reporter is not an act subject to sanctions. <i>See</i> Cal. Civ. Proc. Code § 2023.010(i). Thus, the Court finds that sanctions are not appropriate. Consequently, the Court DENIES Plaintiff's motions.
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5.	<u>30-2024-01424411-CU-PA-CJC</u> Avila vs. Peterson	Before the Court is a Motion to Compel Physical/Mental Examination. ROA 90. On May 1, 2026, Defendant James Edward Peterson ("Defendant James") and Defendant Christine Peterson ("Defendant Christine") (collectively "Defendants") filed the instant Motion to Compel Physical/Mental Examination against Plaintiff Perry Avila ("Plaintiff"). ROA 90. Defendants request that the Court issue an order compelling Plaintiff to attend and complete the mental examination with Dr. Dean Delis. ROA 90. Plaintiff requests that the Court deny the Motion in its entirety. ROA 102. I. Motion to Compel Physical/Mental Examination California Code of Civil Procedure Section 2032.020 permits a party to obtain discovery by means of a physical or mental examination of another party or their agent "in any action in which the mental or physical condition of that party . . . is in controversy in the action." Cal. Civ. Proc. Code § 2032.020(a). "If a defendant who has demanded a physical examination under this article, on receipt of the plaintiff's response to that demand, deems that any modification of the demand, or any refusal to submit to the physical examination is unwarranted, that defendant may move for an order compelling compliance with the demand." Cal. Civ. Proc. Code § 2032.250(a).